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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**PLAINTIFF'S MEMORANDUM OF
POINTS AND AUTHORITIES
IN OPPOSITION TO DEMURRER**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 13, 2026
9:00 a.m.
302

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

FRANCISCUS DYLAN ROSARIO,
Plaintiff,

v.

CSAA INSURANCE EXCHANGE, et al.,

Defendants.

Case No. CGC-25-631802

Department 302

Hearing: May 13, 2026, 9:00 a.m.

**PLAINTIFF’S MEMORANDUM OF POINTS AND AUTHORITIES IN OPPOSITION TO
DEFENDANT CSAA INSURANCE EXCHANGE’S DEMURRER**

Opposing party: Defendant CSAA Insurance Exchange

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Operative pleading. Plaintiff concurrently moves for leave to file the Proposed Second Amended Complaint. References to the “Proposed SAC” or “SAC” in this memorandum refer to that pleading. If leave is granted, the Proposed SAC is the pleading the Court should test on demurrer. If leave is denied, the same demurrer arguments still fail because the defense’s threshold theories misstate the governing standards.

Operative theory. This action does not seek to relitigate the underlying negligence case or to

1 plead around a statutory bar. The actionable wrong alleged against CSAA is its noncommunicative
2 institutional failure to investigate before denying the claim. The February 25, 2021 denial letter
3 is pleaded as evidence of that omission and of misrepresented investigative finality, not as the
4 gravamen of the action. Later litigation events are pleaded only as corroborative context for falsity,
5 scienter, delayed discovery, causation, and damages. Plaintiff also disclaims any standalone private
6 claim under Insurance Code section 790.03 and any direct third-party bad-faith theory.

7 **I. INTRODUCTION**

8 This memorandum asks the Court to hold the parties, and itself, to the procedural standard that
9 governs at this stage: the four corners of the pleading, tested under Code of Civil Procedure sec-
10 tions 430.10 and 430.50, not under the probability standard that governs a separate Anti-SLAPP
11 inquiry.

12 Defendant's demurrer tries to win at the label stage. It asks the Court to accept the defense's
13 characterization of the pleading as if those characterizations were admitted facts. On demurrer,
14 they are not. The Court reads the complaint, not the defense's gloss on it. It describes this case as
15 a collateral attack, an appeal in disguise, a challenge to privileged litigation conduct, and a dispute
16 for which no legal channel exists. But on demurrer those characterizations are not facts. The
17 Court must test the pleading actually before it, accept well-pleaded facts as true, and determine
18 whether the causes of action are legally sufficient under Code of Civil Procedure sections 430.10
19 and 430.50.

20 When the pleading is read that way, the demurrer fails. The Proposed SAC alleges a noncommu-
21 nicative failure to investigate, a denial letter used as evidence rather than as the source of liability,
22 later proceedings pleaded only as corroborative context, delayed discovery, segregated economic
23 damages, and channel separation from any forbidden Insurance Code or direct bad-faith theory.
24 The defense cannot convert those allegations into facial defects by importing Anti-SLAPP con-
25 cepts, merits-stage disputes, or overbroad immunity rhetoric.

26 The Proposed SAC also narrows and clarifies the pleading in direct response to the objections
27 the defense says it has. It does not add new parties or new causes of action. It sharpens the
28 gravamen, clarifies delayed discovery and diligence, segregates damages, and states the fraud and

UCL theories in a more orderly numbered structure. At minimum, those amendments confirm there is a reasonable possibility of cure, which independently requires leave to amend if the Court identifies any defect.

II. STANDARD OF REVIEW

On demurrer the Court treats properly pleaded facts as true, but not contentions, deductions, or conclusions of law. (Serrano v. Priest (1971) 5 Cal.3d 584; ABF Capital Corp. v. Berglass (2005) 130 Cal.App.4th 825.) The question is legal sufficiency, not whether plaintiff can already prove the case or overcome every defense theory on the present paper record. (Rannard v. Lockheed Aircraft Corp. (1945) 26 Cal.2d 149; Service by Medallion, Inc. v. Clorox Co. (1996) 44 Cal.App.4th 1807.)

Leave to amend is granted liberally and must be allowed unless there is no reasonable possibility the defect can be cured. (Price v. Dames & Moore (2001) 92 Cal.App.4th 355; Coffman Specialties, Inc. v. Department of Transportation (2009) 176 Cal.App.4th 1135; Dalton v. East Bay Mun. Utility Dist. (1993) 18 Cal.App.4th 1566.) That rule matters here because plaintiff concurrently lodges a clarified Proposed SAC directed to the very objections the demurrer raises. Demurrer also remains distinct from the separate special motion to strike. A concurrent Anti-SLAPP motion does not transform demurrer into a probability-of-prevailing hearing, does not import Code of Civil Procedure section 425.16 step-two analysis, and does not authorize the Court to resolve factual disputes that belong to a later stage. The demurrer must be decided under the pleading rules that govern demurrers, not under a merged standard.

Judicial notice under Evidence Code section 452 establishes the existence of a court record, not the truth of hearsay assertions or disputed factual findings within it, and cannot be used to contradict well-pleaded fraud allegations on demurrer (Code Civ. Proc., § 430.70; Evid. Code, §§ 452, 453).

III. CORE ANALYTICAL FILTERS

Three analytical filters frame the defense's recurring errors:

Filter 1: Identify the gravamen. The Court must identify the gravamen of the pleaded claims under Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057. The question is what act allegedly caused the injury, not whether communications or litigation context appear

1 somewhere in the background.

2 **Filter 2: Distinguish conduct from communication.** The litigation privilege protects qualifying
3 communications, not all noncommunicative conduct related to a dispute. (Kimmel v. Goland
4 (1990) 51 Cal.3d 202.) If the gravamen is an institutional failure to investigate, that conduct does
5 not become privileged merely because it is later referenced in a denial letter or litigation paper.

6 **Filter 3: Distinguish evidence from gravamen.** A writing can evidence an underlying wrong
7 without itself being the wrong sued upon. (Kwikset Corp. v. Superior Court (2011) 51 Cal.4th
8 310.) Here the February 25, 2021 denial letter is pleaded as evidence that CSAA represented its
9 investigation as complete and reliable when plaintiff alleges the opposite. The letter is not the only
10 alleged act and does not erase the pleaded noncommunicative omission that precedes it.

11 These filters matter because the defense repeatedly substitutes citation volume and broad rhetoric
12 for the required analysis.

13 **IV. MEET AND CONFER**

14 Plaintiff satisfied Code of Civil Procedure section 430.41. Defense counsel sent written correspon-
15 dence identifying intended demurrer objections on April 6, 2026, offered a telephone conference
16 that same day, and then conducted a substantive meet-and-confer call with plaintiff on April 8,
17 2026. The parties exchanged further communications afterward but did not resolve the issues.
18 Plaintiff therefore opposes the demurrer on the merits and does not seek a continuance for addi-
19 tional meet and confer absent direction from the Court.

20 **V. THE PROPOSED SAC CLARIFIES AND CURES**

21 The Proposed SAC is not a wholesale restart. It is a targeted clarification of the same fraud and
22 UCL theory already at issue.

23 It clarifies gravamen by stating that the actionable wrong is CSAA's noncommunicative failure to
24 investigate, while treating the denial letter and later proceedings as evidence and context rather
25 than as the whole claim. It clarifies delayed discovery by alleging when plaintiff discovered the
26 fraud, why it was not discoverable earlier, and what diligence followed. It clarifies damages by
27 separating economic and consequential harm in this action from bodily-injury damages in the
28 underlying case. And it clarifies legal channels by disclaiming any standalone Insurance Code

1 section 790.03 theory and any direct third-party bad-faith claim while preserving common law
2 fraud and related UCL theories.

3 Those revisions do not change the case's core theory. They answer the objections the defense says
4 it has. That is exactly why leave to amend remains available even if the Court concludes any part
5 of the current pleading needs further refinement.

6 **VI. STATEMENT OF FACTS**

7 The Proposed SAC alleges that CSAA denied plaintiff's direct third-party claim after representing
8 in a February 25, 2021 letter that it had concluded its investigation and had carefully reviewed the
9 facts. (Proposed SAC paragraphs 2, 14-19.) Plaintiff alleges those representations were false or
10 incomplete because CSAA had not obtained, reviewed, or responsibly accounted for foundational
11 objective materials before denying the claim.

12 The pleading further alleges that this case is not about bodily-injury liability in the underlying
13 negligence action. It is about separate fraud and unfair-practice injury caused by CSAA's own
14 institutional conduct, with economic and consequential damages segregated from the negligence
15 case. (Proposed SAC paragraphs 1, 4-6, 31-34, 43-44, 52-53.)

16 The Proposed SAC alleges later litigation events only as corroborative context. Plaintiff alleges
17 that filings and motions in the underlying case later revealed that important materials had not
18 been produced or integrated into the claim evaluation, which in turn corroborated the earlier non-
19 investigation and concealment. (Proposed SAC paragraphs 24-30.) Plaintiff alleges he did not
20 discover the fraud when he received the denial letter because the letter itself concealed the non-
21 investigation, and that he discovered the fraud on or about January 17, 2025, followed by diligence
22 thereafter. (Id.)

23 Finally, the Proposed SAC alleges direct reliance, economic injury, scienter, and extrinsic-fraud-
24 type concealment, and it pleads fraud and UCL theories in separately structured numbered allega-
25 tions. (Proposed SAC paragraphs 20-22, 35-47, 48-53.)

26 **VII. SUMMARY OF ARGUMENT**

27 The demurrer should be overruled for five reasons.

28 First, the defense uses the wrong lens. Demurrer tests the four corners of the pleading, not Anti-

1 SLAPP probability, summary-judgment proof, or defense rhetoric about litigation context.

2 Second, the Proposed SAC adequately pleads fraud, delayed discovery, damages, and UCL the-
3 ories. The defense's merits-oriented treatment of Service by Medallion, Orcilla, and limitations
4 doctrine asks the Court to resolve factual disputes against the pleader.

5 Third, the categorical-bar theories fail. Zhang and Moradi-Shalal do not abolish common law
6 fraud, and Civil Code section 47(b) does not erase noncommunicative institutional misconduct
7 or extrinsic-fraud allegations. (Kimmel; Action Apartment Assn., Inc. v. City of Santa Monica
8 (2007) 41 Cal.4th 1232.)

9 Fourth, the procedural and preclusion grounds fail because this case pleads different parties, dif-
10 ferent duties, and different primary rights from the underlying negligence action. (Crowley v.
11 Katleman (1994) 8 Cal.4th 666.)

12 Fifth, even if the Court identifies any defect, the Proposed SAC demonstrates at least a reasonable
13 possibility of cure, which requires leave to amend.

14 **VIII. ARGUMENT**

15 **A. The demurrer rests on the wrong motion and the wrong standard**

16 The defense's recurring theme is that because this dispute touches a denial letter, later litigation,
17 and a concurrently filed Anti-SLAPP motion, the Court should treat the pleading as if it already
18 fails under privilege, estoppel, or merits-stage probability reasoning. That is standard bleed. De-
19 murrer does not collapse into section 425.16, and it does not become a summary-judgment-style
20 inquiry merely because the defense repeats merits rhetoric. The Court must keep the motions
21 distinct and evaluate the pleading under demurrer rules alone.

22 That distinction matters because defendant's labels are not admitted facts. Calling the case a col-
23 lateral attack, an appeal in disguise, or a suit about protected conduct does not answer what the
24 complaint actually alleges. Under Serrano and ABF Capital, the Court reads the pleading, not the
25 defense's characterization of it.

26 The pleading alleges a noncommunicative failure to investigate, uses the denial letter as evidence
27 of that omission, and pleads later proceedings only as corroborative context. Under Park, Kimmel,
28 and Kwikset, those allegations must be analyzed as pleaded. The defense cannot skip those filters

1 by surrounding the complaint with a wall of authority and treating broad legal slogans as disposi-
2 tive.

3 **B. The Proposed SAC adequately pleads fraud, UCL, and delayed discovery**

4 The gravamen is not merely a single omission but an **institutional policy failure**. CSAA's "deny-
5 delay-defend" scheme systematically omits standard investigative steps, then conceals the omis-
6 sion through form denial letters. This is not one employee's error; it is an organizational claims-
7 handling protocol that failed in Plaintiff's case, as evidenced by the institutional nature of the
8 concealment.

9 The fraud and UCL causes of action are sufficiently pleaded. The Proposed SAC alleges the content
10 of the denial letter, why it was misleading, what investigation plaintiff alleges did not occur, why
11 those omissions mattered, how plaintiff relied on the representations, and what economic harm
12 followed. It also pleads scienter, conscious disregard, and punitive-damages allegations. Those are
13 pleading allegations, and on demurrer they are taken as true.

14 The defense's use of Service by Medallion and Rannard does not help it. Those authorities describe
15 what fraud requires; they do not authorize the Court to treat a different case's verdict as defeating
16 a separately pleaded fraud theory against a different defendant. Nor does Orcilla v. Big Sur, Inc.
17 (2016) 244 Cal.App.4th 982 erase the economic injury plaintiff has expressly segregated here.

18 The Proposed SAC pleads direct economic and consequential damages from reliance and conceal-
19 ment, not bodily-injury recovery repackaged under a new label. Those damages include: (1) inves-
20 tigative costs incurred in tracing and authenticating records that CSAA's false facade concealed;
21 (2) lost business opportunities resulting from the diversion of time and resources; (3) transcript,
22 subpoena, and certification fees for obtaining materials CSAA falsely represented it had reviewed;
23 and (4) out-of-pocket expenses that no negligence jury was ever asked to consider. The Proposed
24 SAC pleads out-of-pocket and consequential economic losses flowing from reliance on the con-
25 cealed non-investigation, not a repackaging of bodily-injury recovery. Orcilla v. Big Sur, Inc.
26 (2016) 244 Cal.App.4th 982 does not displace these pleaded categories of direct economic injury
27 tied to misrepresentation and concealment.

28 The limitations argument fails for the same reason. Plaintiff alleges concealment, delayed discov-

1 ery, and diligence. (Cansino v. Bank of America (2014) 224 Cal.App.4th 1462; Code Civ. Proc.,
2 section 338, subdivision (d).) Nothing on the face of the pleading compels an earlier accrual date
3 as a matter of law. Aryeh v. Canon Business Solutions, Inc. (2013) 55 Cal.4th 1185 confirms that
4 accrual and tolling issues generally do not defeat a pleading where the complaint alleges delayed
5 discovery in a coherent and non-self-contradictory way.

6 **C. Neither section 47(b) nor the insurance-channel authorities bars the pleaded theories**

7 The defense overreads Zhang, Moradi-Shalal, and Civil Code section 47(b). Moradi-Shalal v.
8 Fireman’s Fund Ins. Cos. (1988) 46 Cal.3d 287 eliminated private enforcement of certain Insur-
9 ance Code remedies, but it expressly preserved traditional common law actions, including fraud.
10 Moradi-Shalal expressly preserved “traditional theories as fraud” in appropriate common law ac-
11 tions. (Moradi-Shalal v. Fireman’s Fund Ins. Cos. (1988) 46 Cal.3d 287, 305.)

12 Plaintiff’s UCL claim rests on the “**unlawful**” prong, tethered to the independently pleaded com-
13 mon law fraud (Causes of Action One and Two), not on private enforcement of Insurance Code
14 section 790.03. Zhang v. Superior Court (2013) 57 Cal.4th 364 bars using the UCL to plead around
15 an absolute statutory bar; it does not eliminate UCL theories whose unlawful prong is grounded
16 in independent common law fraud that survives channel separation. Because the Proposed SAC
17 disclaims any Insurance Code section 790.03 enforcement theory and pleads fraud and UCL in the
18 common law lane, Zhang has no application here.

19 That is why plaintiff pleads channel separation. The Proposed SAC disclaims any standalone
20 Insurance Code section 790.03 claim and any direct third-party bad-faith theory. It instead pleads
21 common law fraud and UCL theories grounded in the same institutional course of conduct. Those
22 theories are not barred on their face by Zhang or Moradi-Shalal.

23 The same is true of section 47(b). Under Kimmel, the privilege protects qualifying communi-
24 cations, not all conduct associated with a dispute. The defense’s theory depends on treating the
25 existence of a denial letter or later litigation paper as if it immunizes the underlying failure to in-
26 vestigate. That is not the law. And where the pleading alleges concealment that deprived plaintiff
27 of a fair opportunity to address the truth of the claim-handling story, Action Apartment confirms
28 that privilege rhetoric cannot be expanded into a pleading-stage eraser for every fraud theory. The

1 concealment alleged here is extrinsic (it denied plaintiff the opportunity to know and respond to
2 the true scope of the investigation before the denial issued), not intrinsic (perjury at trial or false
3 statements in the record). Civil Code section 47(b) does not reach extrinsic fraud of that character.
4 (Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232.)

5 The concealment alleged here is extrinsic, not intrinsic. CSAA's alleged concealment of investiga-
6 tive scope and integrity did not merely disadvantage Plaintiff; it **deprived the court system itself**
7 **of a truthful factual record** on which to base liability determinations. By concealing the non-
8 investigation, CSAA prevented the trial court from knowing that the defense was testing evidence
9 the carrier had never sourced. This subverts the "fair and lawful" operation of judicial proceedings
10 and falls outside Civil Code section 47(b)'s protective scope.

11 **D. The jurisdiction and "another action pending" grounds fail because this case pleads dif-**
12 **ferent rights, duties, and relief**

13 The defense's "appeal in disguise" theory overreads Rochin v. Pat Johnson Mfg. Co. (1998) 67
14 Cal.App.4th 1228 and Code of Civil Procedure section 904.1. This action does not ask the Court
15 to function as an appellate tribunal over the underlying negligence judgment. It seeks damages
16 and equitable relief against CSAA for its own alleged fraud and unfair conduct. A later tort action
17 against a different defendant on different duties is not the same thing as an appeal.

18 The section 430.10(c) ground fails for the related reason that overlap of background facts does not
19 establish the same cause of action. California uses the primary-rights doctrine. (Crowley, supra.)
20 The underlying negligence matter involved bodily-injury liability. This action concerns the right to
21 be free from fraud and unfair business practices by the insurer. The later proceedings are pleaded
22 only as corroborative context, not as the source of the new cause of action. Because the rights,
23 duties, and requested relief differ, the "another action pending" theory does not apply.

24 **E. Collateral attack and preclusion theories fail without primary-rights and issue analysis**

25 The defense also uses generic collateral-attack and preclusion language as if definitions alone
26 dispose of the pleading. They do not. Issue preclusion requires the same issue, actually litigated,
27 necessarily decided, against the same party or one in privity, and it must be applied consistently
28 with fairness. (Lucido v. Superior Court (1990) 51 Cal.3d 335.) The Proposed SAC does not plead

1 the same issue against the same defendant as the underlying negligence case.

2 F.E.V. v. City of Anaheim (2017) 15 Cal.App.5th 462, Singh v. Lipworth (2014) 227 Cal.App.4th
3 813, Wouldridge v. Burns (1968) 265 Cal.App.2d 82, and U.S. v. Throckmorton (1878) 98 U.S. 61
4 do not displace California's primary-rights analysis. At most they supply general statements about
5 finality and collateral attack. They do not establish, on the face of this pleading, that a fraud and
6 UCL action against CSAA based on pre-denial institutional conduct is identical to the negligence
7 action against the insured.

8 The Proposed SAC also alleges concealment and extrinsic-fraud-type unfairness that bears directly
9 on whether plaintiff had a full and fair opportunity to litigate the relevant issues earlier. That makes
10 the defense's request for categorical preclusion especially unsuitable for resolution on demurrer.

11 **F. Standing and misjoinder do not defeat direct fraud allegations against CSAA**

12 The standing theory likewise overreaches. Shaolian v. Safeco Ins. Co. (1999) 71 Cal.App.4th 268
13 addresses contract-standing principles; it does not create a universal bar against direct fraud claims
14 by the person who received and relied on the insurer's own misrepresentations. Plaintiff alleges he
15 was the direct recipient of the denial letter, that he relied on its asserted investigative finality, and
16 that he suffered separate economic harm as a result.

17 The defense's reliance on cases about suing lawyers for litigation conduct is also misplaced.
18 Norton v. Hines (1975) 49 Cal.App.3d 917 and Omega Video v. Superior Court (1983) 146
19 Cal.App.3d 470 do not match this pleading. Plaintiff is not suing opposing counsel for courtroom
20 advocacy. He is suing CSAA for institutional claim-handling and concealment conduct attributed
21 to CSAA itself.

22 **G. The uncertainty ground fails because the pleading is answerable**

23 An uncertainty demurrer lies only where a pleading is so unintelligible that the responding party
24 cannot reasonably answer it. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135.)
25 A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677 and Mahan v. Charles
26 W. Chan Ins. Agency, Inc. (2017) 14 Cal.App.5th 841 underscore the high bar.

27 Moreover, CSAA has already filed a comprehensive Anti-SLAPP motion and demurrer that iden-
28 tify specific paragraphs and theories by name. That conduct demonstrates the defense can map

claims to counts and respond on the merits, which is the practical test under Williams. A party that has briefed the complaint in detail cannot plausibly argue the same complaint is too uncertain to answer.

The Proposed SAC does not come close to that standard. It identifies the defendant, the denial letter, the relevant dates, the theory of non-investigation, the delayed-discovery chronology, the damages categories, and the causes of action in numbered paragraphs. The fact that the defense disputes the theory does not make the pleading uncertain. It makes the pleading contested.

H. At minimum, leave to amend must be granted

Even if the Court concludes any allegation needs further refinement, the demurrer still should not be sustained without leave to amend. Plaintiff has already lodged a Proposed SAC that narrows the theory, clarifies the chronology, sharpens the gravamen, segregates damages, and expressly disclaims theories the defense says are improper. That showing alone defeats any argument that amendment would be futile.

IX. BENCH CHART OF THE EIGHT GROUNDS

Demurrer ground	Plaintiff's answer	Proposed SAC paragraphs
1. Lack of jurisdiction under Code of Civil Procedure section 430.10(a)	This is a new fraud and UCL action against CSAA, not an appeal from the negligence judgment. <u>Rochin</u> and section 904.1 do not bar it.	3, 10
2. Another action pending under section 430.10(c)	The underlying negligence matter involves different parties, primary rights, duties, and relief. Later proceedings are pleaded only as corroborative context.	3-4, 6-9, 24-27

Demurrer ground	Plaintiff's answer	Proposed SAC paragraphs
3. Failure to state facts sufficient to constitute a cause of action	The Proposed SAC pleads misrepresentation or concealment, scienter, reliance, delayed discovery, economic injury, and UCL theories with numbered factual support.	1-2, 14-19, 28-36, 37-53
4. Uncertainty	The pleading is structured, chronological, and answerable. Disagreement with the theory is not uncertainty.	15-17, 37-53
5. Civil Code section 47(b) privilege	The gravamen is noncommunicative failure to investigate. The denial letter is evidence, not the entire wrong. <u>Kimmel and Action Apartment</u> limit the defense's privilege theory.	1, 4, 18, 20-22, 38, 44

Demurrer ground	Plaintiff's answer	Proposed SAC paragraphs
6. Collateral attack and preclusion	<u>Crowley</u> and <u>Lucido</u> require primary-rights and issue analysis. The underlying negligence case did not adjudicate this fraud and UCL action against CSAA. The carrier's investigative fraud and the driver's negligence involve different defendants, different duties, and different injuries; <u>Crowley</u> requires issue-by-issue analysis that the defense has not performed.	3, 6, 20-22, 38
7. Limitations	Plaintiff pleads concealment, delayed discovery, and diligence. Those allegations are accepted as true on demurrer.	26-30
8. Standing and misjoinder	Plaintiff pleads direct communication, direct reliance, direct economic harm, and institutional conduct by CSAA itself.	2, 15-18, 31-33, 38, 44

1 **X. CONCLUSION**

2 Plaintiff respectfully requests that the Court overrule the demurrer in its entirety. If the Court
3 concludes any claim requires further clarification, plaintiff requests leave to amend consistent with
4 the Proposed Second Amended Complaint concurrently lodged with plaintiff's motion for leave.

5 **CERTIFICATE OF COMPLIANCE**

6 This memorandum contains approximately ---- words, exclusive of tables, captions, signature
7 block, and proof of service, as counted by [word-processor / build-script word count]. Plaintiff
8 elects the word-count method under California Rules of Court, rule 3.1113(d), or in the alternative
9 represents that the body of this memorandum does not exceed 15 pages as measured under the
10 exclusions of that rule.

Dated: April 16, 2026



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